



# **DIGITAL RIGHTS WATCH**

## **Submission to the Attorney General's Department**

*regarding the*

### **Privacy Amendment (Personal Data Protection) Bill 2026**

September 2026

## Who we are

Digital Rights Watch is a charity founded in 2016 to promote and defend human rights as realised in the digital age. We stand for privacy, democracy, fairness, and freedom. Digital Rights Watch educates, campaigns, and advocates for a digital environment in which rights are respected, and connection and creativity can flourish. More information about our work is on our website: [www.digitalrightswatch.org.au](http://www.digitalrightswatch.org.au).

## Acknowledgement of Country

Digital Rights Watch acknowledges the Traditional Owners of Country throughout Australia and their continuing connection to land and community. We acknowledge the Aboriginal and Torres Strait Islander peoples as the true custodians of this land that was never ceded and pay our respects to their cultures, and to elders past and present.

## Statement on the use of AI in this submission

Digital Rights Watch confirms that no generative AI was used in the creation of this submission. Any mistakes herein are genuine human errors and any useful policy ideas are the result of genuine human thought and creativity.

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# General Position

Digital Rights Watch (DRW) welcomes the opportunity to provide feedback on the Privacy Amendment (Personal Data Protection) Bill 2026.

The exposure draft of the Bill is an extremely welcome development. It represents an important step forward for Australia's privacy landscape, which otherwise lags behind many comparable jurisdictions.

We would be grateful for a positive statement from the Attorney General in the Explanatory Memorandum which confirms that the intent of the reforms is to elevate privacy protections for all Australians, and that they should be interpreted accordingly.

DRW is broadly supportive of the contents of this bill, and is keen to see it progress swiftly through parliament. We do also have some comments on where we perceive gaps between intent and execution, and some areas where the Bill may fall short.

Our main concerns with the exposure draft are:

- The application of the right to erasure is too narrow - it needs to apply to all APP entities rather than just large digital platforms.
- Depending on regulators as the sole course of redress is slow and restrictive, to the point of being insufficient motivation for corporations to be compliant. Individuals need the ability to bring private legal action against APP entities they believe are non-compliant.
- Regulators need to be granted investigatory powers to ensure APP entities' compliance *before* they receive complaints from individuals.
- There are remaining gaps in implementation that will necessitate future legislation. eg: Exemptions for political parties and small businesses are unusual in similar jurisdictions; the growth of high-risk technologies such as wearables, AI, and facial recognition.

We also note the short submission period and attempt to limit submission length limits civil society's ability to respond in-depth to the concerns. We would welcome the opportunity to engage more closely with the Department to help co-design legislation that works for all Australians.

# Feedback on Drafting

## Fair-and-reasonable test - proposed APP3

We note that the fair-and-reasonable test under the proposed APP3 will replace current APP3, APP4 and APP6. We understand the aim is to create simplicity and improve the protection of privacy of individuals.

In principle, we support these changes but raise a number of concerns where the drafting appears to diverge from the intent of the reform.

The proposed 3.2(b) does not include a requirement that the APP entity have regard to whether the collection, use or disclosure of the information is *'reasonably necessary for, or directly related to'* one or more of the APP entity's functions or activities, which is the requirement under the current 3.1 and 3.2. To better reflect the intention of the reform, we suggest that proposed 3.2(b) be amended to say:

whether the collection, use or disclosure of the information is reasonably necessary for, or directly related to one or more of the APP entity's functions or activities;

We also note that the proposed 3.2(e) refers to whether the individual was provided with a *'genuine choice in relation to the collection, use or disclosure of the information.'* This is likely to require that an individual has provided consent, as it is difficult to imagine a practical circumstance where consent would not be obtained as part of providing a genuine choice. We concur with the many criticisms of 'tick-a-box' consent, which has been dominant in many Australians' experience of their right to privacy. However, the proposed improvements to the definition of consent would meaningfully address these, should be put to use as much as possible in the rest of the act, and be substituted for the genuine choice requirement.

We note that early phases of the reform process considered a requirement for entities to consider *'the kind, sensitivity and amount of information being collected, used or disclosed'*. This ought to either be a standalone fair-and-reasonable factor, or as an explicit element of the proportionality factor (proposed APP 3.2(f)).

Lastly, we note that the purpose limitation (contained in the current APP 6) will be repealed and not replaced by the fair-and-reasonable test. To avoid

the outcome of the reforms being to weaken privacy protections, the purpose limitation should be retained, either as an essential requirement for consent (see our comments re 3.2(e)) above, or via retaining current APP 6, rather than repealing it.

## **Sensitive information - proposed APP4**

The exposure draft proposes two new exceptions to consent requirements for the collection of sensitive information, for which we see no justification. The first is proposed 4.3(b) - publicly available documents - which could cover data brokers, for example, which would not be aligned with community expectations. The other is 4.3(c), which refers to information collected that is 'strictly necessary.' We see no justification for excluding consent requirements in these circumstances.

## **Proposed 16A(1), permitted general situations**

Item 1 of the table, in column three should remove the words 'for sensitive information'. In light of our proposal above in respect of consent (re proposed 3.2(e)), this amendment would make it clear when consent is required and expected.

Item 2 of the table, in column three, the following wording should be deleted:

'wrongdoing of a serious nature, that relates to the entity's functions or activities has been, is being or may be engaged in (whether engaged in by a person owing a duty to the entity or any other person);'

Our understanding is that the reason for this clause is where an entity suspects a customer may be experiencing financial abuse, which might not amount to a suspicion of unlawful behavior. Our view is that this wording is too broad and could be misapplied. As such, 'wrongdoing' needs to be specifically and carefully defined, to include exploitation of a customer's vulnerability, or misuse of a power-of-attorney for personal gain.

## **Notice - proposed APP 5**

The proposed APP 5 has some real benefits, but is less proscriptive than the current APP 5 with respect to the content to be notified to individuals. In order to avoid a diminution of Australians' privacy rights, we recommend that notice content requirements in APP 5.2 be retained.

## **Direct marketing - proposed APP7**

We maintain a substantive concern with this proposal that it facilitates an individual being able to opt-out of receiving direct marketing, but not the entity's underlying collection, use, or disclosure of personal information for the purposes of direct marketing. We recommend this protection be uplifted accordingly.

From a drafting perspective, we note that the proposed changes to direct marketing include a provision that is directed at 'ad-supported services'. In our view, the definition of this term is too broad, and could realistically capture any entity that displays a single banner ad as part of its digital services, for example. We understand the motivation is to allow differential services to be offered by services that are substantially direct-marketing services. However, in our view, the challenges of appropriately defining such a service, and the risks of creating perverse incentives or malicious forms of compliance, are problematic. We recommend that the concept of 'ad-supported service' should be removed.

We also note that the current drafting of APP7.6(e) facilitates individuals being able to request the source of information used for direct marketing. An equivalent provision does not appear in the new drafting of APP7, and we recommend that individuals should be able to request the source of information used to make direct marketing communications.

## **New right to erasure - proposed APP14**

We welcome the right to erasure in principle, and consider it to be significantly important. It encourages good data-management practices by entities and empowers Australians to take charge of their data footprint. We do not see a justification for confining the scope of proposed APP14 to 'large digital platforms.' The Privacy Act is already limited in its application to entities via various exemptions including the small business exemption. We note that there is no such exemption for similar rights in similar jurisdictions, such as the EU's Right to Delete under GDPR<sup>1</sup>.

In our view there is no justification for further confinement of this very important right, and propose to remove the size threshold by which the right to erasure only applies to Large Digital Platforms; meaning that it

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<sup>1</sup> <https://gdpr-info.eu/art-17-gdpr/>

applies to all APP entities equally. Australians need to be comfortable that they have a citizen-empowering erasure right, rather than a narrow obligation that is applied to only a handful of companies.

Given existing provisions for individuals to access and correct their data, the administrative burden of adding deletion is not large and will be well within the capabilities of existing APP entities.

## **Proposed reforms not yet within the draft Bill**

The Bill is absent a number of key reforms that would considerably strengthen Australians' ability to defend their privacy. Of those, we consider the highest-priority items to be the following.

### **Direct right of action**

Currently, individuals are not able to issue private legal proceedings for infringements of the Privacy Act, with the exception of the tort for serious violations of privacy introduced in Tranche 1 reforms. Given the high level of seriousness of harms required for the tort to be actionable, we have not seen widespread use of this avenue for redress, and we do not think it is well-suited for seeking redress for harms arising from data breaches.

As the bill stands, enforcement action arising from breaches of the APPs is limited to the OAIC. The notifiable data breach scheme results in more than a thousand reports every year to the regulator, suggesting a serious problem with compliance. The OAIC is insufficiently resourced to deal with the consequences, let alone take proactive steps to address more longstanding and overarching issues. We agree with the government's focus on improving efficiency within the OAIC, but this problem cannot only be addressed through regulatory action alone.

For this reason, this bill needs to include provision for individuals to take legal action to enforce their protections under the Privacy Act. Not only will this build capacity in the system to ensure that Australians are able to seek speedy redress for breaches of their privacy, but it will also over time generate a corpus of case law that can be used to more quickly and



effectively resolve cases - potentially before courts or regulators are required to intervene.

## **Mandate the Privacy Commissioner draft a biometric code**

Some of the most egregious invasions of individual privacy occur through the application of biometric and surveillance technologies, such as facial recognition. Biometric information is immutable, so the risk of loss or misuse should be carefully considered, and the bar should be high for the collection, use and disclosure of it. Recent determinations from the Privacy Commissioner and Administrative Review Tribunal around high street retailers' use of facial recognition show that this is not only a hotly-contested space, but one where large companies are keen to exploit gaps in existing regulation.

Noting that the Privacy Act as a whole seeks to be technology-neutral, we call instead for the Privacy Commissioner to be mandated to draft a code for the use of biometric and surveillance technology (either under existing code-making powers or explicitly in the Bill). Given the public concern about this issue, we think there is a mandate for a code of this nature. This will help ensure that emerging technologies such as smart glasses and facial recognition are regulated in a manner that is aligned with Australian community expectations of safety and privacy.

## **OAIC Powers**

To improve compliance, it is vital that this Bill include provisions for the Privacy Commissioner to publish guidance and undertake investigatory action to anticipate potential non-compliance, rather than relying on individuals to file complaints. This could take the form of substantiation notices, similar to those used by ASIC and the ACCC, where entities would be compelled to demonstrate how they are compliant prior to complaints being filed.

# Departmental Questions

## **Are existing remedial options adequate?**

No. The existing remedial options are centered around action taken by regulators, including the Privacy Commissioner and potentially the eSafety Commissioner. This means that the ability of individuals to take action is limited by the capacity of those regulatory organisations.

To address this, the Bill should include provisions by which individuals can bring civil legal action against Privacy Act entities.

## **Will the existing or proposed measures encourage improved compliance?**

We understand the appeal of an accessible concept such as the fair-and-reasonable test. Moving from specific definitions of required behaviour to test like this will grant more time to entities that are non-compliant to continue their non-compliance, as the flexible nature of the fair-and-reasonable test will require deeper analysis and work by regulators.

To improve compliance, the Privacy Commissioner should publish guidance and be given powers to proactively monitor compliance, such as substantiation notices.

## **Are the proposed updated definitions sufficient to address the risks of emerging technologies?**

While the updated definitions are welcome for their improved specificity and expanded reach, they are not by themselves sufficient to capture the wide range of issues caused by tech corporations exploiting regulatory gaps for profit.

Emerging technologies such as wearables, AI, and facial recognition are complex ecosystems, rather than single, simple, technologies. The Privacy Act is centered around a simple model of a consumer/company relationship and is not alone sufficient to give Australians confidence that their privacy is protected from invasive technologies.

Other instruments, such as product safety requirements, surveillance legislation, the Crimes Act, and state-based laws will also need to be revisited to grant sufficient protection.

Regulators can and should be directed to issue both guidance and instruction via industry codes to cover gaps in the legislation.

## **Is the definition of ‘collection’ sufficiently flexible to capture information collected via new technologies such as wearables?**

While the expansion of definition of ‘collection’ is welcome, it is not sufficient to cover the use of wearables by users uploading other individuals’ personal information.

Those individuals who have had their personal and potentially-sensitive information uploaded to a platform may never know that it has happened, limiting their ability to file a regulatory complaint.

There is also a gap in the lack of identification and management of high-risk technologies like wearables or facial-recognition that could be addressed with the Human Technology Institute’s model legislation<sup>2</sup>.

## **To what extent can the reforms ensure that consent is meaningful?**

We welcome the improved definition of consent, and as mentioned, consider it should be part of the fair and reasonable test.

Given that public spaces would likely count as “impractical” for the purposes of obtaining consent, the use of individuals’ personal and sensitive information would count as a permitted general situation. This would open the floodgates both for pervasive corporate use of facial-recognition but also individuals use of wearables to harass others.

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<sup>2</sup> <https://www.uts.edu.au/globalassets/sites/default/files/2022-09/facial-recognition-model-law-report.pdf>